

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DAVID STEWART,

Respondent

) Case Number: FCS-11-346715

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom at 10am on 5/19/2026 in Department 404 to discuss Father's parenting time. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) David Stewart (Father) and Lilia Scott (Mother) have one minor child together, Cybelle (DOB 12/8/2010, age 15). Mother has sole legal and sole physical custody of Cybelle.
- 2) In an order filed 3/26/2025, the Court noted it had “just recently granted Father unsupervised visitation after essentially a lifetime of estrangement.” The Court issued various orders including an order for unsupervised parenting time for Father twice a month for 2 hours per visit in a public place, and for Father's younger son Bruce to attend the visits until and unless the parties agree otherwise.
- 3) On 1/27/2026, Father filed a request for joint legal custody and 70/30 physical custody “or some form of equal shared parenting,” “for any weekend or weekday with a ‘Step up’ . . . strategy in

place.” He states that Mother allowed him to see Cybelle only 17 times from March to December 2025 and was inflexible in the scheduling of visits, including using Bruce's unavailability as a reason to cancel visits. He states he is developing a bond with Cybelle and that Cybelle told him she wants to spend more time with him but “sound[ed] timid about discussing more Dad time with her mom due to fear of retaliation.”

- 4) Mother filed a response in which she notes that she and Cybelle participated in Rally visits and two rounds of reunification therapy before the current parenting time schedule was put in place. She states the custody orders are final, Montenegro orders. She states Father saw Cybelle only a few times when she was a baby and then disappeared for 9 years. She states Father exercised only 8 of his court-ordered visits over the past year, or 16 hours total, and that Father has repeatedly said he is willing to spend less time with Cybelle if he is able to pay less in child support. Mother denies that she interferes with Father’s relationship with Cybelle. She states that when Father does not schedule his visits or does not confirm in time, she asks Cybelle if she would like to suggest alternatives, and she says she would like to skip the visits. Cybelle also says she does not want Father to have her phone number or contact her directly. Mother requests a Tier II interview if the Court is inclined to order significantly more parenting time for Father.
- 5) On 4/9/2026, the parties appeared at the hearing on Father's request, but the matter was continued to 5/19/2026 after Father informed the Court that he wished to retain counsel before proceeding with the hearing.
- 6) On 5/7/2026, Mother filed an update declaration informing the Court that Father has not scheduled any visits with Cybelle since the last hearing.
- 7) On 5/15/2026, Father filed a Notice of Limited Scope Representation by attorney Tracy Henderson as well as a request for judicial notice of various documents.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Mother shall continue to have sole legal and sole physical custody of Cybelle.

3) **The parties are ordered to appear in person or via Zoom at 10am on 5/19/2026 in
Department 404 to discuss Father's parenting time.**